

DETERMINATION TO SOLICIT FROM A SINGLE SOURCE

Pursuant to Federal Acquisition Regulation (FAR) 13.106-1(b)(1)(i), for purchases not exceeding the Simplified Acquisition Threshold (SAT) Contracting Officers may solicit from only one source if the circumstances of the contract action deem only one source is reasonably available (e.g., urgency, exclusive licensing agreements, brand name, or industrial mobilization).

Pursuant to FAR 13.106-1(b)(1)(ii), when a single source is identified to provide a portion of the purchase as a Brand-Name, the documentation in paragraph 3 must state that this determination is only for a portion of the requirement.

1. Agency and Contracting Activity.

U.S. Department of the Interior, Bureau of Reclamation (BOR), California Great Basin (CGB)
Regional Office, Acquisition Services, CGB-3800

2. Name and Address of Single Source.

Gandy-Staley Oil, Inc.
630 Eureka St.
Willows, CA 95988

3. Description of Supplies/Services and Estimated Cost

The Northern California Area Office (NCAO) has a requirement for the purchase of regular unleaded, 87-octane, gasoline for the government owned vehicles operated by the Stony Gorge Ranger Station.

The anticipated period of performance is for one 12-month base year and four, 12-month option years beginning August 1, 2025, through July 31, 2030. The anticipated contract type is firm fixed price with economic price adjustment.

4. Description of Circumstances, including why only one source is reasonably available.

IAW FAR 13.106-1(b)(1)(ii), Gandy-Staley Oil, Inc. is the only available supplier of vehicle fuel services within an acceptable distance from the Stony Gorge Reservoir. The ranger station is a remote site located at Stony Gorge Reservoir and the daily reporting site for BOR personnel. This ranger station is responsible for Stony Gorge Reservoir located in Glenn County. The closest town to the ranger station, Elk Creek, is approximately 3 miles away from Stony Gorge. Gandy-Staley Oil operates the only available fuel pump in Elk Creek. The only other available fuel sources are in Stonyford, CA and Willows, CA which are 22 miles and 25 miles away respectively. Gandy-Staley does not accept GSA fleet credit cards but does utilize a card lock system. A card lock system requires a unique card to dispense fuel and keep track of the usage. This system replaces the manual reconciliation of individual paper receipts as all usage is billed on a weekly or monthly basis. Utilizing the Gandy-Staley fuel station will fulfill the need and benefit the rangers by allowing them to fill the vehicle gas tanks within close proximity to their reporting site. Going to any other gas station would

*WBR 1413.106-1 Template 1
eFile - B02
(11/2020)*

require rangers to leave their patrol area of responsibility, jeopardizing the safety and welfare of the public and Reclamation employees.

5. **Determination of Fair and Reasonable Price.**

The government will conduct a fair market price analysis on the offeror's proposed pricing as required by FAR 13.106-2(b)(1), Evaluation Procedures. The price offered will be compared to current published pricing found at the U.S. Energy Information Administration website and the average price per gallon as listed by the American Automobile Association. No purchase order will be issued until the contractor's pricing has been determined to be fair and reasonable in accordance with FAR 13.106-3(a)(2)(iii).

6. **Description of Market Research.**

A review of prior fuel acquisitions for Stony Gorge Reservoir and a market search of current available sources has determined there are no other suppliers within 15 miles capable of providing unleaded fuel for Stony Gorge Ranger Station.

Market research was conducted via the internet, email/chat, GSA Advantage, and SBA's Dynamic Small Business Search.

According to SBA's Dynamic Small Business Search, approximately eight (8) small business contractors were found to be able to provide fuel services in California under search criteria including NAICS 324110 and 424710 (Petroleum Bulk Stations and Terminals) and key words such as "fuel". NOTE: 424710 is a wholesale trade NAICS and cannot be used. Of these 8 contractors, only 2 are in the same county as Stony Gorge Reservoir – Glenn County. The 2 identified are Black Knight Enterprises and Gandy-Staley Oil. A review of Black Knight Enterprises Inc's capabilities narrative does not explicitly state fuel delivery services. It appears this contractor focuses on fire suppression which involves fuel reduction management and is not relevant to this requirement.

A GSA eLibrary search of NAICS 324110 came up with zero (0) results.

A google search for gas stations in Elk Creek, CA (nearest town to Stony Gorge Reservoir) populates with results of 12 gas stations, however, the closest station is over 18 miles away in Willows. When looking at google maps, there is a Sunoco located approximately 15 miles away however, this station is part of Thunderhill Raceway Park and only sells race fuel, not "regular/87 octane" unleaded gasoline.

The contracting officer spoke with Gandy-Staley Oil who provided a letter pertaining to the sole source nature of this action. The representative confirmed that the gas station located in Elk Creek is the only station within a 15-mile radius of Stony Gorge Reservoir and that they are the sole distributor of fuel to this station. Gandy-Staley Oil, Inc. is registered as a small business in SAM.gov.

Lastly, the contracting officer spoke with the customer via Microsoft Teams chat who confirmed the sole source nature of this action.

*WBR 1413.106-1 Template 1
eFile - B02
(11/2020)*